

Kishore Biyani v. State of U.P. & Anr.

Allahabad High Court · Single Judge · 12 March 2024 · 2024:AHC:43655 · Application U/S 482 No. 239 of 2024 · **Application allowed; summoning order, non-bailable warrant and complaint proceedings quashed**

HEADNOTE

Not a Supply Code / electricity case. A Section 482 Cr.P.C. petition to quash a criminal complaint of breach of trust (IPC ss.406/405) against the former Executive Chairman of a retail chain over an unpaid food-supply bill; the Court held the transaction was a purely commercial sale (no 'entrustment' of property), the mandatory Section 202(1) Cr.P.C. enquiry (accused residing outside jurisdiction) was not held, and quashed the proceedings. No electricity supply or Supply Code issue is involved; flagged here only because the judgment surfaced in the source corpus.

HOLDING-UNITS

INTERPLAY · OFFTOPIC::ipc-405-406-entrustment

Criminal breach of trust — commercial sale is not 'entrustment'; mandatory Section 202(1) enquiry

HOLDING

A mere commercial sale transaction (unpaid supply of goods) does not amount to 'entrustment' of property under Section 405 IPC; absent entrustment and dishonest misappropriation, no offence under Section 406 is made out. Where the accused resides outside the trial court's jurisdiction, Section 202(1) Cr.P.C. mandates an enquiry before summoning, and its omission vitiates the summoning order. ¶ paras 31-37

LIMITING FACTS

No electricity/Supply Code facts; a food-products supplier's criminal complaint against the former Executive Chairman of 'Big Bazaar' (Future Retail Ltd.) over unpaid invoices, filed after the company entered NCLT insolvency/moratorium.

FLAG Entirely off-topic to the Supply Code jurisprudence; recorded only to keep the source-corpus review complete. No provision-holdings or authorities from this case are added to the Supply Code index.